ANNEXURE 12- DRAFT OF BANK GUARANTEE
DEED OF BANK GUARANTEE FOR RETENTION

This Deed of Guarantee ("**Bank Guarantee**") is made at Mumbai on this [●] day of [●] by [●] Bank, having its registered office at [●] and a branch at [●] (hereafter called as the **"Bank"** which expression shall, unless repugnant to context or contrary to the meaning thereof, include its successors) and has been issued in favour of _____, having its registered office at Commerz, 3rd Floor, International Business Park, Oberoi Garden City, Off W.E. Highway, Goregoan (East), Mumbai - 400 063 (hereinafter called as the "**Employer**" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and assigns).

WHEREAS the **"Employer"** has entered into a works contract no. [●] dated [●] (hereinafter called "**Contract**") with **M/s.** [●]**,** having its registered office at [●] (hereinafter called as the "**Contractor**" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and permitted assigns) for executing of works mentioned in the Contract at the Employer's project [●] situated at [●], Mumbai.

AND WHEREAS, in accordance with the terms of Contract, the Contractor had agreed to furnish ___% (_____Percent) of the Contract Amount towards Retention. The Employer has accordingly called upon the Contractor to furnish an irrevocable bank guarantee from a Bank, guaranteeing payment of a sum not exceeding Rs.[●]/- (Rupees [●] Only) (hereinafter called the **"Guaranteed Amount"**) and the Bank has agreed to furnish the same in favour of the Employer as hereinafter appearing.

NOW IT IS HEREBY AGREED AS UNDER:

1. The Bank do hereby unconditionally and irrevocably guarantee and undertake to pay to the Employer under this Bank Guarantee any and all money payable by the Contractor to the extent of the Guaranteed Amount on demand being made by the Employer at any time up to **[●]** (hereinafter called "**the Expiry Date**") without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Bank undertakes not to revoke this Bank Guarantee during its currency without the prior written consent of the Employer and further agrees that this Bank Guarantee shall continue to be enforceable until the Employer discharges this Bank Guarantee or until the Expiry Date (subject to extension in accordance hereof), whichever is earlier.

2. The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this Bank Guarantee from time to time to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty without affecting this Bank Guarantee, to postpone from time to time the exercise of any power vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants contained or implied in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer and the Bank shall not be released from its liabilities under these presents by any exercise by the Employer of the liberty with reference to matters aforesaid or by reason of time being given to the Contractor or any other forbearance act or omission on the part of the Employer or any indulgence by the Employer to the Contractor or of any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing the Bank from its liability.

3. Should it be necessary to extend this Bank Guarantee beyond the date of expiry of this Bank Guarantee on account of extension of time being granted by the Employer to the Contractor for the due fulfilment of the obligations under the Contract, the Bank undertakes to extend the period of this Bank Guarantee until such time as may be reasonably required, upon receiving written instructions from the Contractor on or before the expiry of this Bank Guarantee. If for any reasons the extension is not granted after receiving written request from the Contractor, the amount covered under this Bank Guarantee shall forthwith become payable to the Employer, notwithstanding that the Contract is continuing and / or whether the Employer has terminated the Contract or not, and / or preferred any claim against the Contractor.

4. The liability of the Bank under this Bank Guarantee shall not be discharged, released, affected or impaired in any way by reason of any modification, amendment or variation in or to any of the obligations, conditions or provisions of the Contract by reason of any arrangement made between the Employer and the Contractor or by reason of any breach or breaches of the Contract by the Employer or by the Contractor, whether the same is or are made or occurs with or without the knowledge or consent of the Bank. The Bank further agrees that no invalidity in the Contract nor its avoidance, suspension or termination shall discharge, affect or impair its liability hereunder and that no waiver, compromise, indulgence or forbearance, whether as to time, payment, performance or any other matter afforded by the Employer to the Contractor under the Contract, shall discharge, affect or impair the liability of the Bank hereunder.

5. The Bank further agrees that the Employer shall be the sole judge whether the Contractor has committed any breach or breaches of any of the terms and conditions of the Contract and the extent of loss, damages or costs, charges and expenses suffered or incurred or would be suffered or incurred by the Employer on account thereof.

6. The Bank also agrees that the Employer at its option shall be entitled to enforce this Bank Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

7. The liability of the Bank to make payment to the Employer as stated hereinabove shall not be discharged, released, affected or impaired in any way by reason of any one or more of the following:

(a) Any dispute between the Employer and the Contractor.
(b) Any suit or proceeding regarding the subject matter of the Contractor.
(c) Insolvency, liquidation, winding up, dissolution or cessation of business by the Contractor.
(d) Any negligence, omission or failure on the part of the Employer to commence any proceeding against the Contractor.
(e) Any concession, failure, time or leniency granted to the Contractor by the Employer.

8. The payment under this Bank Guarantee shall be made by the Bank without requiring the Employer to invoke any legal remedy that may be available to the Employer and the Employer shall be entitled at its absolute discretion to determine whether an occasion has arisen for a demand to be made and as such, the Bank shall not be entitled to question or dispute the validity of the demand.

9. The Bank agrees and undertakes that this Bank Guarantee is irrevocable during its tenure including further extensions if any except with the written consent of the Employer.

10. The Bank hereby agrees that in the event of part invocation, this Bank Guarantee shall remain valid for the balance amount either by substituting with a new bank guarantee or any other mechanism with same terms and conditions of this guarantee till the Expiry Date (subject to extension in accordance hereof) mentioned in this Bank Guarantee.

11. The Bank further agrees and undertakes that the Bank shall not be entitled to postpone, delay or avoid payment to the Employer on the ground that the Guaranteed Amount has not become due or that the Contractor has disputed its liabilities or on any other ground.

12. This Bank Guarantee is in addition to and not in substitution for any other guarantee executed by the Bank in favour of the Employer on behalf of the Contractor.

13. Notwithstanding anything to the contrary contained herein, this Bank Guarantee shall operate and be valid independently of other, similar guarantees given at the request of the Contractor in favour of the Employer.

14. The Bank confirms that it has the power to issue this Bank Guarantee including under the Bank's Memorandum & Articles of Association and the issuance of this Bank Guarantee has been duly authorized by the Bank and the undersigned has full power and authority to act for and on behalf of the Bank in respect of this Bank Guarantee.

15. This Bank Guarantee shall not be affected by any change in the constitution of the Bank nor shall this Bank Guarantee be affected by any change in the constitution of the Employer or any amalgamation or absorption with any other body corporate and this Bank Guarantee will be available to or enforceable by such body corporate.

16. This Bank Guarantee shall exclusively be governed by the laws of India, and the Courts at Mumbai shall have exclusive jurisdiction.

17. Any notice by way of request, demand or otherwise hereunder may be sent by post to the Bank addressed as aforesaid and if sent by post it shall be deemed to have been received by the Bank at the time when it would be delivered in due course by post and in proving such notice when given by post, it shall be sufficient to prove that the envelope containing the notice was posted and a certificate signed by an officer of the Employer that the envelope was so posted, shall be conclusive. However, such claim request should be received by the Bank in writing on or before the expiry of this Bank Guarantee (subject to extension in accordance hereof). The Employer shall not be required to serve on the Contractor copies of any notices issued to the Bank under this Bank Guarantee.

Notwithstanding anything contained hereinabove:

(i) The liability under this Bank Guarantee shall not exceed **INR [●]/-** (Indian Rupees [●] Only);

(ii) This Bank Guarantee shall be valid up to **[●]** subject to the provisions relating to extension clause hereinabove;

(iii) The Bank shall be liable to pay the Guaranteed Amount or any part thereof under this Bank Guarantee only if the Employer serves upon the Bank, a written claim or demand (and which should be received by the Bank), on or before **[●] [●]** hours (Indian Standard Time) **(**subject to the provisions relating to extension clause hereinabove), where after it ceases to be in effect in all respects whether or not the Original Bank Guarantee is returned to the Bank.

This Bank Guarantee is Non-assignable and Non-transferrable.

Dated this _____ day of _____20___

AS WITNESS our hand

Signed by : _____
(Name and designation of officer)

for and on behalf of

_____ _____
(Name of Bank) (Signature)

in presence of:

Name : _____

Designation:_____

(Signature of Witness)

DEED OF BANK GUARANTEE FOR PERFORMANCE

This Deed of Guarantee ("**Bank Guarantee**") is made at Mumbai on this [●] day of [●] by [●] Bank, having its registered office at [●] and a branch at [●] (hereafter called as the **"Bank"** which expression shall, unless repugnant to context or contrary to the meaning thereof, include its successors) and has been issued in favour of _____, having its registered office at Commerz, 3rd Floor, International Business Park, Oberoi Garden City, Off W.E. Highway, Goregoan (East), Mumbai - 400 063 (hereinafter called as the "**Employer**" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and assigns).

WHEREAS the **"Employer"** has entered into a works contract no. [●] dated [●] (hereinafter called "**Contract**") with **M/s.** [●]**,** having its registered office at [●] (hereinafter called as the "**Contractor**" which expression shall, unless repugnant to the context or contrary to the meaning thereof, include its successors and permitted assigns) for executing of works mentioned in the Contract at the Employer's project [●] situated at [●], Mumbai.

AND WHEREAS, in accordance with the terms of Contract, the Contractor had agreed to furnish ____% (_____ Percent) of the Contract Amount as Performance Guarantee. The Employer has accordingly called upon the Contractor to furnish an irrevocable bank guarantee from a Bank, guaranteeing payment of a sum not exceeding Rs.[●]/- (Rupees [●] Only) (hereinafter called the **"Guaranteed Amount"**) and the Bank has agreed to furnish the same in favour of the Employer as hereinafter appearing.

NOW IT IS HEREBY AGREED AS UNDER:

18. The Bank do hereby unconditionally and irrevocably guarantee and undertake to pay to the Employer under this Bank Guarantee any and all money payable by the Contractor to the extent of the Guaranteed Amount on demand being made by the Employer at any time up to **[●]** (hereinafter called "**the Expiry Date**") without any demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Bank shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Bank undertakes not to revoke this Bank Guarantee during its currency without the prior written consent of the Employer and further agrees that this Bank Guarantee shall continue to be enforceable until the Employer discharges this Bank Guarantee or until the Expiry Date (subject to extension in accordance hereof), whichever is earlier.

19. The Employer shall have the fullest liberty without affecting in any way the liability of the Bank under this Bank Guarantee from time to time to extend the time for performance of the Contract by the Contractor. The Employer shall have the fullest liberty without affecting this Bank Guarantee, to postpone from time to time the exercise of any power vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants contained or implied in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer and the Bank shall not be released from its liabilities under these presents by any exercise by the Employer of the liberty with reference to matters aforesaid or by reason of time being given to the Contractor or any other forbearance act or omission on the part of the Employer or any indulgence by the Employer to the Contractor or of any other matter or thing whatsoever which under the law relating to sureties would, but for this provision, have the effect of so releasing the Bank from its liability.

20. Should it be necessary to extend this Bank Guarantee beyond the date of expiry of this Bank Guarantee on account of extension of time being granted by the Employer to the Contractor for the due fulfilment of the obligations under the Contract, the Bank undertakes to extend the period of this Bank Guarantee until such time as may be reasonably required, upon receiving written instructions from the Contractor on or before the expiry of this Bank Guarantee. If for any reasons the extension is not granted after receiving written request from the Contractor, the amount covered under this Bank Guarantee shall forthwith become payable to the Employer, notwithstanding that the Contract is continuing and / or whether the Employer has terminated the Contract or not, and / or preferred any claim against the Contractor.

21. The liability of the Bank under this Bank Guarantee shall not be discharged, released, affected or impaired in any way by reason of any modification, amendment or variation in or to any of the obligations, conditions or provisions of the Contract by reason of any arrangement made between the Employer and the Contractor or by reason of any breach or breaches of the Contract by the Employer or by the Contractor, whether the same is or are made or occurs with or without the knowledge or consent of the Bank. The Bank further agrees that no invalidity in the Contract nor its avoidance, suspension or termination shall discharge, affect or impair its liability hereunder and that no waiver, compromise, indulgence or forbearance, whether as to time, payment, performance or any other matter afforded by the Employer to the Contractor under the Contract, shall discharge, affect or impair the liability of the Bank hereunder.

22. The Bank further agrees that the Employer shall be the sole judge whether the Contractor has committed any breach or breaches of any of the terms and conditions of the Contract and the extent of loss, damages or costs, charges and expenses suffered or incurred or would be suffered or incurred by the Employer on account thereof.

23. The Bank also agrees that the Employer at its option shall be entitled to enforce this Bank Guarantee against the Bank as a principal debtor, in the first instance without proceeding against the Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

24. The liability of the Bank to make payment to the Employer as stated hereinabove shall not be discharged, released, affected or impaired in any way by reason of any one or more of the following:

(a) Any dispute between the Employer and the Contractor.
(b) Any suit or proceeding regarding the subject matter of the Contractor.
(c) Insolvency, liquidation, winding up, dissolution or cessation of business by the Contractor.
(d) Any negligence, omission or failure on the part of the Employer to commence any proceeding against the Contractor.
(e) Any concession, failure, time or leniency granted to the Contractor by the Employer.

25. The payment under this Bank Guarantee shall be made by the Bank without requiring the Employer to invoke any legal remedy that may be available to the Employer and the Employer shall be entitled at its absolute discretion to determine whether an occasion has arisen for a demand to be made and as such, the Bank shall not be entitled to question or dispute the validity of the demand.

26. The Bank agrees and undertakes that this Bank Guarantee is irrevocable during its tenure including further extensions if any except with the written consent of the Employer.

27. The Bank hereby agrees that in the event of part invocation, this Bank Guarantee shall remain valid for the balance amount either by substituting with a new bank guarantee or any other mechanism with same terms and conditions of this guarantee till the Expiry Date (subject to extension in accordance hereof) mentioned in this Bank Guarantee.

28. The Bank further agrees and undertakes that the Bank shall not be entitled to postpone, delay or avoid payment to the Employer on the ground that the Guaranteed Amount has not become due or that the Contractor has disputed its liabilities or on any other ground.

29. This Bank Guarantee is in addition to and not in substitution for any other guarantee executed by the Bank in favour of the Employer on behalf of the Contractor.

30. Notwithstanding anything to the contrary contained herein, this Bank Guarantee shall operate and be valid independently of other, similar guarantees given at the request of the Contractor in favour of the Employer.

31. The Bank confirms that it has the power to issue this Bank Guarantee including under the Bank's Memorandum & Articles of Association and the issuance of this Bank Guarantee has been duly authorized by the Bank and the undersigned has full power and authority to act for and on behalf of the Bank in respect of this Bank Guarantee.

32. This Bank Guarantee shall not be affected by any change in the constitution of the Bank nor shall this Bank Guarantee be affected by any change in the constitution of the Employer or any amalgamation or absorption with any other body corporate and this Bank Guarantee will be available to or enforceable by such body corporate.

33. This Bank Guarantee shall exclusively be governed by the laws of India, and the Courts at Mumbai shall have exclusive jurisdiction.

34. Any notice by way of request, demand or otherwise hereunder may be sent by post to the Bank addressed as aforesaid and if sent by post it shall be deemed to have been received by the Bank at the time when it would be delivered in due course by post and in proving such notice when given by post, it shall be sufficient to prove that the envelope containing the notice was posted and a certificate signed by an officer of the Employer that the envelope was so posted, shall be conclusive. However, such claim request should be received by the Bank in writing on or before the expiry of this Bank Guarantee (subject to extension in accordance hereof). The Employer shall not be required to serve on the Contractor copies of any notices issued to the Bank under this Bank Guarantee.

Notwithstanding anything contained hereinabove:

(iv) The liability under this Bank Guarantee shall not exceed **INR [●]/-** (Indian Rupees [●] Only);

(v) This Bank Guarantee shall be valid up to **[●]** subject to the provisions relating to extension clause hereinabove;

(vi) The Bank shall be liable to pay the Guaranteed Amount or any part thereof under this Bank Guarantee only if the Employer serves upon the Bank, a written claim or demand (and which should be received by the Bank), on or before **[●] [●]** hours (Indian Standard Time) **(**subject to the provisions relating to extension clause hereinabove), where after it ceases to be in effect in all respects whether or not the Original Bank Guarantee is returned to the Bank.

This Bank Guarantee is Non-assignable and Non-transferrable.

Dated this _____ day of _____20___

AS WITNESS our hand

Signed by : _____
(Name and designation of officer)

for and on behalf of

_____ _____
(Name of Bank) (Signature)

in presence of:

Name : _____

Designation:_____
(Signature of Witness)